

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Karina Herrera	Team: Squad #07	CCRB Case #: 202007240	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 10/31/2020 3:14 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 110
Date/Time CV Reported Sun, 11/01/2020 2:05 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 11/01/2020 2:05 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Sanchez	23298	948129	110 PCT
2. POM Derek Figueroa	27689	969072	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Speciale	15139	949686	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Sanchez	Force: Police Officer Christophe Sanchez used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM Derek Figueroa	Force: Police Officer Derek Figueroa used physical force against § 87(2)(b)	B . Complainant Uncooperative

Case Summary

On November 1, 2020, § 87(2)(b) filed the following complaint with the CCRB via the Call Processing System on behalf of herself and her cousin, § 87(2)(b) and § 87(2)(b) are Spanish speakers.

On November 24, 2020, Inv. Matthew Donaghy called § 87(2)(b) at the telephone number that she provided at the time that she filed her complaint, but no one answered, so a voicemail message was left. On November 26, 2020, Inv. Donaghy received a missed call from the same telephone number that was used to call § 87(2)(b) and an individual left a voicemail message identifying themselves as § 87(2)(b). On November 27, 2020, Inv. Donaghy made a second call to the same telephone number, but no one answered, so a second voicemail message was left. On December 4, 2020, Inv. Donaghy placed a third call to § 87(2)(b) and she answered. § 87(2)(b) confirmed her contact information and she requested to speak with a Spanish-speaking investigator. Therefore, this complaint was reassigned to the undersigned investigator, and on December 8, 2020, a fourth call was placed to § 87(2)(b) § 87(2)(b) answered the call and she mentioned that both her and her cousin, § 87(2)(b) were victims of the complaint. § 87(2)(b) said that her and § 87(2)(b) were arrested during the incident, so they had pending criminal court cases in regards to it. § 87(2)(b) chose to consult with her attorney prior to proceeding with her complaint and she agreed to do so by December 16, 2020, but she did not contact the CCRB on that date. On December 22, 2020, a fifth call was made to § 87(2)(b) § 87(2)(b) but no one answered, so a third voicemail message was left. Between January 7, 2021 and February 3, 2021, three letters were sent to the address that § 87(2)(b) provided at the time that she filed her complaint, and none of them were returned by the United States Postal Service (USPS). To date, § 87(2)(b) has not contacted the CCRB.

On November 12, 2020, Inv. Donaghy called § 87(2)(b) at the telephone number that was provided by § 87(2)(b) but no one answered, so a voicemail message was left. On December 8, 2020, the undersigned investigator placed a second call to the same telephone number and § 87(2)(b) answered. § 87(2)(b) agreed to provide a statement to the CCRB after § 87(2)(b)'s attorney's decision. On January 7, 2021, a third call was made to § 87(2)(b) and he answered. § 87(2)(b) stated that he wanted to consult with his attorney prior to providing a statement to the CCRB and he agreed to do so by January 10, 2021, but he did not contact the CCRB on that date. On January 25, 2021, a fourth call was placed to § 87(2)(b) but no one answered, so a second voicemail message was left. On February 2, 2021, a fifth call was made to § 87(2)(b) and an individual answered, but then they immediately disconnected the call. Shortly afterwards, a sixth call was placed to § 87(2)(b) at the same telephone number, but no one answered, so a third voicemail message was left. Between January 25, 2021 and February 10, 2021, three letters were sent to § 87(2)(b) at the address provided by § 87(2)(b) at the time she filed this complaint, and none of them were returned by the USPS. To date, § 87(2)(b) has not contacted the CCRB.

On February 10, 2021, a search for § 87(2)(b) and § 87(2)(b) was conducted on the New York City Department of Corrections website, and the results showed that they were not incarcerated.

§ 87(2)(g)

Therefore, it is recommended that this case be closed as **Complainant Uncooperative**.

Investigator:	<u>Karina Herrera</u>	<u>Inv. Karina Herrera</u>	<u>02/11/2021</u>
	Signature	Print Title & Name	Date
Squad Leader:	<u> </u>	<u>Manager Vanessa Rosen</u>	<u>2/23/2021</u>
	Signature	Print Title & Name	Date
Reviewer:	<u> </u>	<u> </u>	<u> </u>
	Signature	Print Title & Name	Date